

Court No. - 35

Case :- WRIT - C No. - 17939 of 2018

Petitioner :- Suman Gupta

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Amrit Lal Yadav,R. P. Singh Parihar

Counsel for Respondent :- Kapil Dev Singh Rathore,

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Put up as fresh on 22.05.2018 in order to enable the learned counsel of either side to take instruction in the matter.

Order Date :- 18.5.2018

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Court No. - 35

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Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Amrit Lal Yadav,R. P. Singh Parihar

Counsel for Respondent :- Kapil Dev Singh Rathore,

Hon'ble Bharati Sapru,J.

Hon'ble Krishna Singh,J.

Sri Kapil Dev Singh Rathore, learned Counsel for the respondent has received instructions telephonically to say that there is due of rupees sixty five thousand approximately against the petitioner.

In case, the petitioner deposits the amount as mentioned above, her electricity connection may be restored .

Put up this matter as fresh on 25.05.2018 as fresh to enable the parties to settle the matter outside.

Order Date :- 22.5.2018

S.P.

Court No. - 3

Case :- WRIT - C No. - 17939 of 2018

Petitioner :- Suman Gupta

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd.
And 3 Others

Counsel for Petitioner :- Amrit Lal Yadav, R. P. Singh
Parihar

Counsel for Respondent :- Kapil Dev Singh Rathore,

Hon'ble Pankaj Mithal, J.

Hon'ble Rajiv Joshi, J.

The petitioner is aggrieved by the demand of electricity dues. The petitioner contents that she has arrears only of Rs. 22971/- whereas counsel for the respondent nos. 2, 3 and 4 submits that he has instructions to inform that amount is payable by the petitioner of Rs. 65,531/-.

The dispute with regard to the amount dues and payable by the petitioner is a matter to be adjudicated upon the facts for which evidence may be necessary. This is not possible in exercise of the extraordinary jurisdiction.

The dispute regarding to the demand of electricity dues or bill can be resolved by taking recourse to paragraph 6.5 of the Electricity Supply Code, 2005.

In view of above alternative remedy available to the petitioner, we are not inclined to indulge of this matter and the petition is **dismissed** on the ground of alternate remedy.

Order Date :- 25.5.2018

Sanjeet